

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TOYOTA DE PUERTO RICO CORP., *Complainant*

v.

PUERTO RICO PORTS AUTHORITY, CROWLEY PUERTO RICO
SERVICES, INC., AND OCEANIC GENERAL AGENCY, INC.,
Respondents.

DOCKET NO. 19-02

Served: October 22, 2019

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

REVISED SCHEDULING ORDER

On October 18, 2019, the parties filed their second joint status report (“second JSR”). The second JSR states that the parties have agreed to an extension of discovery and that the parties suggest a number of amendments to the schedule. Second JSR at 3.

Requests to change the schedule should be filed by motion, not just mentioned in status reports. In addition, the undersigned is concerned about the apparent failure by both parties to produce witnesses for depositions resulting in delays in the proceeding. To expedite the process, the undersigned will modify the schedule as suggested by the parties. However, because one of the proposed deadlines falls on a weekend, that and a following deadline are extended slightly. In addition, an additional joint status report will be required.

The parties mentioned a potentially relevant case recently decided by the Puerto Rico Supreme Court. If the parties want the case considered, they will need to provide a copy or citation to an English version of the decision. In addition, the parties are notified of a recent Commission decision in *In Re Vehicle Carrier Services*, FMC Docket Nos. 16-01, 16-07, 16-10, and 16-11, available in the docket on the Commission’s website.

For the reasons stated above, it is hereby

ORDERED that the parties abide by the following schedule:

October 23, 2019 PRPA must produce its overdue initial disclosures.

November 1, 2019 Deposition of PRPA representative.

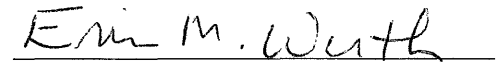
November 5, 2019 Deposition of Toyota representative.

November 12, 2019 All discovery completed. Third joint status report due.

December 2, 2019 Complainant files brief, proposed findings of fact, and appendix.

December 20, 2019 Respondent files opposition brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact.

January 10, 2020 Complainant files reply brief and responses to Respondent's proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge